



CHAPTER 44.

An Act to amend the Patents and Designs Acts, 1907 to 1942, and the Patents, Designs, Copyright and Trade Marks (Emergency) Act, 1939, in respect of matters arising out of hostilities or the communication of inventions and designs in accordance with agreements or arrangements with other countries.

[15th April 1946.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. At the end of section eighteen of the principal Act (which relates to the extension of the term of patents and provides in subsection (6) thereof for cases in which the patentee has suffered loss or damage by reason of hostilities between His Majesty and any foreign state) the following subsection shall be added :—

" (8) In any case where an application could be made to the court under subsection (6) of this section—

Application to comptroller for extension of term of patents where loss arises by reason of hostilities.

- (a) the application may, at the option of the patentee, be made in the prescribed manner to the comptroller instead of to the court, and the foregoing provisions of this section shall apply, so far as applicable and subject to the necessary modifications, to such an application in like manner as they apply to an application to the Court under the said subsection (6), except that the requirement imposed on an applicant by subsection (1) of this section to advertise his intention to make the application shall be dispensed with ;

- (b) if the comptroller considers that the application raises issues of a kind that would be more fittingly decided by the court, he may, if he thinks fit, refer the application for decision by the court ;
- (c) an appeal shall lie to the Appeal Tribunal from any decision of the comptroller on an application made under this subsection, and on such an appeal the applicant and any other parties to the proceedings shall be entitled to appear and be heard, and the comptroller shall also be entitled to appear and be heard and shall appear if so directed by the Tribunal."

Protection
of inventions
and designs
communicated
under agree-
ments or
arrangements
with other
countries.

2. For section ninety-one C of the principal Act (which contains provisions as to communication of inventions and designs under agreements or arrangements with other countries) there shall be substituted the following section :—

" 91C.—(1) Subject to the provisions of this section, the Board of Trade may make rules to secure that, where an invention or design has been communicated in accordance with an agreement or arrangement made between His Majesty's Government in the United Kingdom and the government of any other country for the supply or mutual exchange of information or articles,—

- (a) such communication, or the publication, making, use, exercise or vending of the invention, or the publication or application of the design, in consequence of such communication, shall not prejudice any application for a patent for the invention or any application for the registration of the design, being an application made by a person from whom the invention or design was so communicated or the legal representative or assignee of such a person, or invalidate the grant on such an application of a patent for the invention or the registration on such an application of the design ;
- (b) any such application shall have priority over any other application for a patent for the invention or any part thereof or for the registration of the design or any part thereof, if that other application was made by a person who obtained the invention or design or part thereof in consequence of such communication as aforesaid ;
- (c) any application for a patent for an invention or for the registration of a design may be refused on the ground that the invention or design or any part thereof was obtained in consequence of such communication as aforesaid, and any patent or registration of a design may be revoked or cancelled on that ground.

(2) Rules made under the foregoing subsection may provide that the publication, making, use, exercise, vending or obtaining of an invention, or the publication, application or obtaining of a design, shall, in such circumstances and subject to such conditions or exceptions as may be prescribed by the rules, be presumed to have been in consequence of such communication as aforesaid.

(3) The powers of the Board of Trade under this section, so far as they are exercisable for the benefit of persons from whom inventions or designs have been communicated to His Majesty's Government in the United Kingdom by the government of any other country, shall only be exercised if and to the extent that the Board are satisfied that substantially equivalent provision has been or will be made under the law of that country for the benefit of persons from whom inventions or designs have been communicated by His Majesty's Government of the United Kingdom to the government of that country.

For the purposes of this subsection references to His Majesty's Government or to the government of any other country shall be construed as including references to any person authorised by that government to make or receive any such communication."

3. In subsection (2) of section twenty-five of the principal Act (which sets out the grounds on which a patent may be revoked), after paragraph (o) there shall be inserted the following paragraph—

"(oo) that, in the case of a patent bearing a date within any war period as defined by subsection (1B) of section twenty-nine of this Act and extended by any other enactment, the invention was secretly worked prior to that date by a Government department or the agents or contractors of, or other person authorised in that behalf by, a Government department, otherwise than in consequence of the communication or disclosure of the invention by the applicant for the patent directly or indirectly to a Government department."

Revocation of patents for inventions worked in war-time by or on behalf of Government departments.

4.—(1) An application for a patent or for the registration of a design may be refused by the comptroller at any stage of the proceedings on the ground that the invention or design was, during the period beginning with the third day of September, nineteen hundred and thirty-eight, and ending with the thirty-first day of December, nineteen hundred and forty-five, invented or designed in Germany or Japan or invented or designed by a German or Japanese national in any territory which was then enemy territory.

Inventions and designs made in Germany or Japan.

(2) The ground mentioned in subsection (1) of this section shall be an additional ground for opposing under section eleven of the principal Act an application for a patent, or for revoking a patent under section twenty-five or section twenty-six of the principal Act or for cancelling the registration of a design under section fifty-eight of the principal Act or (by way of rectification of the register) under section seventy-two of the principal Act, and shall also, on infringement proceedings, be an additional ground of defence or for a counterclaim for the revocation of a patent or the cancellation of the registration of a design.

(3) The foregoing provisions of this section shall not apply in any case where—

(a) the applicant, patentee, or proprietor of a registered design, as the case may be, proves that the invention or design was invented or designed in Germany before the third day of September, nineteen hundred and thirty-nine, or was invented or designed in Japan before the seventh day of December, nineteen hundred and forty-one, and has at no time since the said third day of September or, as the case may be, the said seventh day of December, been beneficially owned in whole or in part by a German or Japanese national or a German or Japanese company ; or

(b) the application for the patent or for the registration of the design was made before the first day of February, nineteen hundred and forty-six, and the applicant, patentee, or proprietor of the design, as the case may be, proves that the invention or design was independently invented or designed outside Germany and Japan by a person, other than a German or Japanese national, being either the applicant, patentee or proprietor or a person through whom he claims ; or

(c) the invention or design was invented or designed by a prisoner of war in German or Japanese hands, unless it is shown that it was subsequently obtained from him by any German or Japanese national before the first day of January, nineteen hundred and forty-six.

(4) An appeal shall lie from any decision of the comptroller under this section to the Appeal Tribunal, and the provisions of the principal Act relating to appeals to the Appeal Tribunal shall apply to appeals under this section.

(5) The Board of Trade may make rules under section eighty-six of the principal Act for carrying this section into effect and in particular for requiring applicants for a patent or for the registration of a design to furnish information as to matters arising under this section.

5. Section sixty-nine of the principal Act (which prohibits the publication of specifications, drawings, etc., where an application has been abandoned) shall not apply in any case where an application for a patent has been abandoned or become void, or an application for a design has been abandoned or refused, during the first war period as originally defined in subsection (1B) of section twenty-nine of the principal Act, and it appears to the comptroller that the application was made by or on behalf of a German or Japanese national or a German or Japanese company; and accordingly the application and specifications, with the drawings, samples, representations and specimens (if any), shall be open to public inspection.

Power of comptroller to publish specifications etc., accompanying abandoned German or Japanese applications.

6.—(1) In exercising his powers under section six of the Patents, Designs, Copyright and Trade Marks (Emergency) Act, 1939, to extend the time limited for the doing of any act, the comptroller may, without prejudice to his general discretion under that section and notwithstanding the provisions of subsection (3) of that section, treat as a sufficient ground for refusing to exercise those powers the fact that the act in question, if it had been done immediately before the expiration of the time so limited, would have been done by or on behalf of a German or Japanese national or a German or Japanese company or a national or company of any country in the case of which the comptroller is not satisfied that powers substantially equivalent to those conferred by the said section six are exercised under the law of that country for the benefit of British nationals and British companies.

Amendment of enactments providing for extension of time.
2 & 3 Geo. 6.
c. 107.

(2) In subsection (1) of the said section six for the words "that the doing of the act within the time so limited was prevented by a person's being on active service or by" there shall be substituted the words "that the act was not done within the time so limited by reason that a person was on active service or by reason of".

(3) In section ninety-one B of the principal Act (which provides for extending the time for applications in respect of inventions made in Convention countries) for the words in subsection (1) from "in any case where" to the end of the subsection there shall be substituted the words "in any case where the period specified in proviso (a) to subsection (1) of section ninety-one of this Act for the making of an application under that section expires during a period prescribed by the rules."

7.—(1) In this Act the following expressions have the meanings hereby respectively assigned to them, that is to say:—

Interpretation.

"company" means any body of persons, corporate or unincorporate, and, in relation to a country, means any such body having its principal place of business in that country or controlled by the government of that country

or by a national thereof or by any such body having its principal place of business in that country; and the expressions "British company", "German company" and "Japanese company" shall be construed accordingly;

"enemy territory" means—

(a) any area which was enemy territory as defined by subsection (1) of section fifteen of the Trading with the Enemy Act, 1939;

(b) any area in relation to which the provisions of the said Act applied by virtue of an order made under subsection (1A) of the said section fifteen (as amended by the Defence (Trading with the Enemy) Regulations, 1940), as they applied in relation to enemy territory as so defined; and

(c) any area which, by virtue of Regulation six or Regulation seven of the said Regulations, or any order made thereunder, was treated for any of the purposes of the said Act as enemy territory as so defined or as such territory as is referred to in the last foregoing paragraph;

"Germany" means territory comprised in the German State on the first day of March, nineteen hundred and thirty-eight;

"German national" does not include any person who at the relevant time was a German national by reason only of the incorporation of any territory in the German State after the first day of March, nineteen hundred and thirty-eight, or was not an enemy for any of the purposes of the Trading with the Enemy Act, 1939;

"principal Act" means the Patents and Designs Act, 1907, as amended by the amending Acts;

"the amending Acts" means the Patents and Designs Act, 1914, the Patents and Designs Act, 1919, the Patents and Designs (Convention) Act, 1928, the Patents and Designs Act, 1932, the Patents, etc. (International Conventions) Act, 1938, the Patents and Designs (Limits of Time) Act, 1939, and subsection (1) of section one and sections two and three of the Patents and Designs Act, 1942;

and other expressions have the same meanings as in the principal Act.

(2) References in any Act passed before this Act to the Patents and Designs Act, 1907, shall, unless the context otherwise requires, be construed as references to that Act as amended by the amending Acts and this Act.

8.—(1) This Act may be cited as the Patents and Designs Act, 1946 ; and the Patents and Designs Acts, 1907 to 1942, and this Act may be cited together as the Patents and Designs Acts, 1907 to 1946. Short title,
citation,
extent and
printing.

(2) It is hereby declared that this Act extends to Northern Ireland.

(3) This Act shall extend to the Isle of Man.

(4) A copy of the Patents and Designs Act, 1907, with the amendments effected by the amending Acts and by sections one, two, three, and subsection (3) of section six of this Act shall be prepared and certified by the Clerk of the Parliaments and deposited with the Rolls of Parliament, and His Majesty's printer shall print copies of the Patents and Designs Act, 1907, in accordance with the copies so certified.

Printed by Sir NORMAN GIBB SCORGIE, C.V.O., C.B.E.,
Controller of His Majesty's Stationery Office
and
King's Printer of Acts of Parliament